

STATE OF MICHIGAN

IN THE CIRCUIT COURT FOR THE COUNTY OF OAKLAND

FG AGENCY LENDING LLC, a
Delaware limited liability company,

Plaintiff,

vs.

WDB HOLDING MI, INC., a Delaware corporation;
SPARTAN PARTNERS CORPORATION, a Michigan
corporation; SPARTAN PARTNERS HOLDINGS,
LLC, a Michigan limited liability company; SPARTAN
PARTNERS SERVICES LLC, a Michigan limited
liability company; SPARTAN PARTNERS
PROPERTIES LLC, a Michigan limited liability
company; SPARTAN PARTNERS LICENSING LLC, a
Michigan limited liability company; AEY HOLDINGS,
LLC, a Michigan limited liability company; AEY
CAPITAL LLC, a Michigan limited liability company; and
THRIVE ENTERPRISES LLC, a Michigan limited
liability company;

Defendants.

2026-222791-CB

Case No. 2026-_____-CB

Hon. JUDGE MICHAEL WARREN

**COMPLAINT FOR
APPOINTMENT OF
RECEIVER AND OTHER
RELIEF**

**BUSINESS COURT
ELIGIBLE**

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**PLAINTIFF’S COMPLAINT FOR
APPOINTMENT OF RECEIVER AND OTHER RELIEF**

In accordance with MCR 2.112(O)(1), this Complaint meets the statutory requirements to be assigned to the Business Court. There is no other pending or unresolved civil action between these parties arising out of the same transaction or occurrence as alleged in this Complaint, nor has any such action been previously filed, and dismissed or transferred after having been assigned to a judge.

FG Agency Lending LLC (“Plaintiff” or “FG”), by its attorneys, Dickinson Wright PLLC, and in support of its Complaint for Appointment of Receiver and Other Relief against Defendants WDB Holding MI, Inc., Spartan Partners Corporation, Spartan Partners Holdings LLC, Spartan Partners Services LLC, Spartan Partners Properties LLC, Spartan Partners Licensing LLC, AEY Holdings LLC, AEY Capital LLC, and Thrive Enterprises LLC, (collectively, the “Defendants” or “Michigan Entities”), states the following:

NATURE OF THE CASE

1. The Michigan cannabis industry is struggling greatly due to multiple macro factors. Numerous businesses have exited the market or gone out of business, including many large, sophisticated operators who, in their reasonable business judgment, no longer deem Michigan a suitable place to operate. Such is the case here.

2. In June 2025, the enterprise commonly referred to as “Gage” – inclusive of the Michigan Entities – commenced the shut-down of its Michigan operations (the “Michigan Exit”).¹

3. The Michigan Exit, among other things, contemplated the regulatorily compliant cessation of business operations, termination of certain lease agreements, and the sale of tangible assets owned by various companies within the Gage enterprise, including the Michigan Entities.

¹ <https://www.crainsdetroit.com/cannabis/terrascend-exit-michigan-market/>

4. The Michigan Exit was monitored and where required, consented to by FG as agent for TerrAscend USA Inc.'s ("US-Parent") prime, secured lender group (the "Secured Lenders") which holds a first-priority security interest over the assets indirectly owned and controlled by US-Parent, including those of the Michigan Entities.

5. The Michigan Entities made progress in effectuating the Michigan Exit. However, several active litigations brought by affected third parties continue and others are threatened. These litigations compromise FG's interest in the Michigan Entities' remaining assets which are its collateral (the "Third-Party Litigations").

6. Also, in the context of the Michigan Exit, an independent third party was brought in to operate a cultivation facility owned by Defendant Spartan Partners Properties LLC and licensed in the name of Defendant AEY Capital, LLC (the "Monitor Facility").²

7. This year's long arrangement will generate additional rental income for the benefit of FG (and the Secured Lenders) and will also relieve those specific Michigan Entities of associated carrying costs which they are otherwise unable to sustain. The Third-Party Litigations likewise threaten the stability of this arrangement and the economic recovery flowing to the Secured Lenders by virtue thereof.

8. Accordingly, FG required the Michigan Entities to resolve each of the Third-Party Litigations by May 1, 2026. TerrAscend Corp., an Ontario corporation ("CAN-Parent"), US Parent and each of the Michigan Entities consented to the appointment of a receiver over the Michigan Entities and their remaining assets if the Third-Party Litigations were not so resolved by that stated deadline.

² The referenced third-party operational arrangement has been fully disclosed to, and approved by, the Michigan Cannabis Regulatory Agency (the "Regulator") in accordance with applicable regulations.

9. Despite the Michigan Entities earnest efforts, certain Third-Party Litigations remain unresolved, causing FG to initiate this action to appoint a receiver over the Michigan Entities and their remaining assets, including the Monitor Facility (collectively, the “Remaining Collateral”).

10. FG and the Michigan Entities believe a receivership is necessary to complete the Michigan Exit in an orderly and efficient manner, and those Michigan Entities now stipulate to the entry of such an order (filed contemporaneously with these pleadings).

11. The parties further agreed in writing to bring the instant receivership action in Oakland County Business Court.

12. Accordingly, FG seeks the appointment of a Receiver pursuant to the consent of the Michigan Entities, and MCL 554.1011-1040 (the “Receivership Act”), MCL 600.2926, and MCR 2.622, to (a) take possession of the Remaining Collateral, as set forth *infra*, and (b) wind-down the remaining business of the Michigan Entities for the benefit of their respective creditors and equity holders.

PARTIES, JURISDICTION, AND VENUE

13. FG is a Delaware limited liability company authorized to conduct business in the State of Michigan. Its registered office is in Troy, Michigan.

14. Upon information and belief, WDB Holding MI, Inc. (“WDB”) is a Delaware corporation authorized to conduct business in the State of Michigan. It is an intermediary subsidiary/parent as between US-Parent and the remaining Michigan Entities.

15. Upon information and belief, Spartan Partners Corporation (“SPC”) is a Michigan corporation. It too is an intermediary subsidiary/parent as between WDB and certain other Michigan Entities.

16. Upon information and belief, Spartan Partners Holdings, LLC is a Michigan limited liability company. It is also an intermediary subsidiary/parent as between SPC and certain other Michigan Entities.

17. Upon information and belief, Spartan Partners Services LLC is a Michigan limited liability company. It provided support services to the other Michigan Entities who directly held assets and/or operated businesses under the “Gage” brand.

18. Upon information and belief, Spartan Partners Properties LLC (“Spartan PropCo”) is a Michigan limited liability company. It is/was the owner of real property utilized by other Michigan Entities who directly operated businesses under the “Gage” brand, including the Monitor Facility.

19. Upon information and belief, Spartan Partners Licensing LLC is a Michigan limited liability company. It licensed various intellectual property to other Michigan Entities who directly operated businesses under the “Gage” brand.

20. Upon information and belief, AEY Holdings LLC is a Michigan limited liability company. It is directly owned by WDB and functioned as an operator of certain cannabis-focused businesses licensed by the Regulator and doing business as “Gage.”

21. Upon information and belief, AEY Capital LLC (“AEY Capital”) is a Michigan limited liability company. It is directly owned by WDB and functioned as an operator of certain cannabis-focused businesses licensed by the Regulator and doing business as “Gage.”

22. Upon information and belief, Thrive Enterprises LLC is a Michigan limited liability company. It is directly owned by WDB and functioned as an operator of certain cannabis-focused businesses licensed by the Regulator and doing business as “Gage.”

23. This Court has jurisdiction over this matter pursuant to MCL 600.2926.

24. This Court also has jurisdiction over this matter pursuant to MCL 600.8035.

25. This Court also has jurisdiction over this matter pursuant to MCL 600.751 and MCL 600.755.

26. This Court possesses personal jurisdiction over Defendants pursuant to MCL 600.711 and/or MCL 600.715.

27. Venue is proper in this Court because the parties stipulated to this Court specifically for the instant receivership action, as stated further *supra*. Additionally, FG's registered office is in Troy, Michigan.

28. This case qualifies for Business Court assignment, and this matter should be identified as Business Court Eligible pursuant to MCL 600.8031 and MCL 600.8035. Further, pursuant to MCL 600.8031(1)(c)(i) and MCL 600.8031(2)(d), (e), and (g), this case is eligible for the Business Court assignment because all the parties are business enterprises and this case involves contractual agreements, commercial business transactions, and commercial real property.

GENERAL ALLEGATIONS

Michigan Exit Status

29. Plaintiff incorporates by reference the preceding allegations as if fully restated herein.

30. As summarized above, the Michigan Entities constitute part of a sophisticated network of operators, support service providers and holding companies which collectively functioned as "Gage" within the Michigan regulated cannabis industry. Each is indirectly owned and controlled by US-Parent.³

³ The Michigan "Gage" enterprise included several additional companies which are not party to these proceedings as they are not defendants in the Third-Party Litigations and do not own any Remaining Collateral.

31. At all relevant times, such operations were conducted pursuant to the Michigan Medical Marihuana Facilities Licensing Act (MCL 333.27101 *et seq.*),⁴ the Michigan Regulation and Taxation of Marihuana Act (MCL 333.27951 *et seq.*), and the regulations promulgated by the Regulator thereunder (collectively, the “Acts”).

32. Through the Michigan Exit, certain assets of the Michigan Entities (and others) were liquidated with the consent of FG (and the Secured Lenders), save the following pieces of Remaining Collateral: (i) 3821 & 3825 Stadium Drive, Kalamazoo, MI 49008, including all personal property located within the premises; (ii) 4174 & 4178 W. Pierson Rd. Mt. Morris, Michigan 48504; (iii) 421 S. Main St. Camden, Michigan 49232, including all personal property located within the premises; (iv) 2704 & 2706 Portage St. Kalamazoo, Michigan 49001, including all fixtures located within the premises; and (v) the Monitor Facility located at 391 Midland Rd. Monitor Township, Michigan 48706, including certain personal property as outlined in the operative sublease mentioned above.

33. Licensed operations have been shuttered at all former Michigan “Gage” facilities except for the Monitor Facility, owned by Spartan PropCo and licensed through Defendant AEY Capital as follows: AU-P-000279; AU-G-C-000253 through 257; PR-000293; GR-C-475; GR-C-000580 through 582). The Monitor Facility is in Bay County, Michigan, and features approximately 26,000 square feet of indoor, hydroponic cultivation, 7,500 square feet of laboratory and processing space, and 7,000 square feet of office and support space, sitting on approximately 15 acres. Construction of the Monitor Facility was commenced in 2022.

⁴ The spelling of marihuana with an “h” has a long history in the United States. Michigan has historically used that spelling because it was employed in the Federal Marihuana Tax Act of 1937. Michigan adopted its statutory definition of marihuana in the Public Health Code, utilizing the then current federal spelling, and continues to employ it under the present statutory regime.

34. As mentioned above, AEY Capital has contracted with a third-party management services company to operate the Monitor Facility through a sublease which ensures Spartan PropCo will continue to receive rental income that also constitutes Remaining Collateral.

35. As of the initiation of these proceedings, the Third-Party Litigations include three (3) pending lawsuits, one (1) pending arbitration and certain other contractual disputes for which litigation has been formally threatened, all of which concern various contractual obligations of the following Entity Defendants (among others): AEY Capital LLC, Thrive Enterprises LLC, AEY Holdings LLC, Spartan Partners Licensing, LLC, and Spartan Partners Services, LLC.

36. Upon information and belief, the Michigan Entities have attempted to resolve those Third-Party Litigations pursuant to parameters approved by FG (as prime secured creditor) and such efforts have been unsuccessful.

The Loan Documents & Collateral

37. On or about September 30, 2024, the Michigan Entities entered into an agreement (“Joinder Agreement”) through which they joined that certain Loan Agreement dated August 1, 2024 (as amended, restated, supplemented or otherwise modified from time to time, the “Loan Agreement”) by and among, on the one hand, the Secured Lenders and FG as their administrative agent, and on the other, US-Parent as a borrower and the borrower representative, the subsidiaries of US-Parent including the Michigan Entities (collectively, “Borrowers”), and CAN-Parent solely as guarantor (along with Borrowers, the “Loan Parties”). (See Joinder Agreement attached as **Exhibit 1** (without schedules)).

38. Borrowers owe Lenders more than \$210M under the financing arrangement governed by the Loan Agreement.

39. Pursuant to the Joinder Agreement, the Michigan Entities also joined the Security Agreement dated August 1, 2024 (the “Security Agreement”), by and among the Borrowers and FG, pursuant to which the Borrowers pledged liens and security interests in favor of FG on all or substantially all of their personal property assets and which liens were perfected by the filing of certain financing statements (collectively, the “UCC-1s”). (See Table of UCC-1s attached as **Exhibit 2**).

40. The Remaining Collateral which constitutes personal property falls within the scope of the Security Agreement and the associated UCC-1 filings, meaning FG remains the prime secured creditor relative to those assets which secure more than \$210M in outstanding indebtedness owed to Secured Lenders.

41. Pursuant to the Joinder Agreement, the Michigan Entities also (i) joined that certain Intercompany Subordinated Note, dated as of August 1, 2024, as affiliate obligors, and entered (ii) certain Term Notes and Promissory Notes, (iii) that certain Amendment to Pledge Agreement dated September 30, 2024, (iv) those certain Deposit Account Control Agreements, and (v) those certain Mortgage Agreements between Spartan PropCo and FG (the “FG Mortgages” and together with the Loan Agreement and all other associated documents, the “Loan Documents”). (See Table of FG Mortgages attached as **Exhibit 3**).

42. The FG Mortgages cover the Remaining Collateral which is real property (as itemized above), including the Monitor Facility. (*Id.*).

FG’s Conditional Accommodation of the Michigan Exit

43. Pursuant to a letter agreement dated September 19, 2025, FG (with the consent of Secured Lenders) allowed the Michigan Entities and other affiliates (*see* Note 3, *supra*) to take certain actions in furtherance of the Michigan Exit, including entering into purchase agreements

with respect to certain licensed facilities and reaching settlements regarding various leases to which those entities were party.

44. Further, pursuant to that certain Letter Agreement dated April 17, 2026 (the “April 2026 Letter Agreement”), the Loan Parties – and specifically the Michigan Entities – agreed to the initiation of receivership proceedings in Oakland County Business Court if any Third-Party Litigation remained pending as of May 1, 2026. (See April 2026 Letter Agreement attached as **Exhibit 4**). In that regard, the failure to resolve the Third-Party Litigation by that deadline is an “Event of Default” under the Loan Agreement. (*Id.* at § 2) (“Any breach of the covenants and agreements set forth in this Section 2(a) shall be an immediate Event of Default under Section 9.1 of the Loan Agreement[] and shall not be subject to any cure period.”).

45. Accordingly, through the April 2026 Letter Agreement, the Michigan Entities expressly agreed that upon an Event of Default, they would cooperate in the appointment of a receiver selected by FG pursuant to these pleadings and the associated, stipulated order filed herewith.⁵ In particular:

- a. The April 2026 Letter Agreement states that upon an Event of Default thereunder, “the Loan Parties shall stipulate to and fully cooperate in the Agent’s remedies . . . including . . . the appointment of a receiver or keeper to take possession of any [Remaining] Collateral and to enforce any of [FG’s] remedies with respect to such appointment without prior notice or hearing as to such appointment” (**Ex. 4** at § 2(b)(i)).

⁵ Subject to certain exceptions and only with respect to the Michigan Exit, FG has agreed to a limited forbearance of its other available remedies under the Loan Documents for so long as the Loan Parties continue to cooperate in the institution and progression of the subject receivership proceedings.

- b. The April 2026 Letter Agreement further directs that the “Receivership” (as defined therein) “shall be filed in Oakland County Circuit Court and the Michigan [Entities] shall stipulate to the entry of the underlying receivership order appointing a qualified receiver of [FG’s] choosing to take possession of any [Remaining] Collateral owned or otherwise held by the Michigan [Entities], and to enforce the Lenders’ remedies with respect to such appointment without further notice or hearing as to such appointment.” (*Id.* at § 2(b)(ii)).

Defendants’ Default Under the Letter Agreements

46. Upon information and belief, including based upon reports from the Loan Parties which are required under the Loan Documents, the Third-Party Litigations (as defined above) remain pending and continue to threaten FG’s superior interests in the Remaining Collateral. (*See* Affidavit of Lynn Gefen attached as **Exhibit 5**).

47. The pendency of Third-Party Litigations constitutes an Event of Default under the April 2026 Letter Agreement and thus, the Loan Agreement itself.

48. Resultantly, FG (as authorized agent for the Secured Lenders) now institutes these proceedings to appointed over the Michigan Entities and their Remaining Collateral for the ultimate benefit of all creditors and interest holders, because an orderly process preserving the value of such Remaining Collateral is preferable to the present circumstances underlying the Michigan Exit.

COUNT I – APPOINTMENT OF RECEIVER
(Against All Defendants)

49. Plaintiff reasserts and realleges its allegations contained in the foregoing paragraphs.

50. This action seeks the appointment of a receiver pursuant to the Receivership Act, MCL §§ 554.1011-1040.

51. As described herein, Defendants have breached the terms of the Loan Agreement and the incorporated April 2026 Letter Agreement by failing to resolve the Third-Party Litigations on or before May 1, 2026.

52. Pursuant to the April 2026 Letter Agreement, Defendants expressly consented to the appointment of a receiver upon such an Event of Default and have stipulated to the order of appointment filed herewith. (*See* Ex. 4).

53. Moreover, the Receivership Act authorizes this Court to appoint a receiver in connection with the enforcement of a security agreement or lien when “[a]ppointment is necessary to protect the property from waste, loss, dissipation, or impairment,” when the grantor of a lien in the property “agreed in a signed record to appointment of a receiver on default,” or when the “owner agreed, after default and in a signed record, to appointment of a receiver.” MCL 554.1016(2)(a), (b) and (c).

54. Further, pursuant to MCL 554.1011, *et seq.*, MCL 600.2926, MCL 333.27959a, and MCR 2.622, this Court has statutory and equitable authority to appoint a receiver.

55. Absent appointment of a receiver, the Remaining Collateral (including, for the avoidance of doubt, the Monitor Property) is subject to waste, and Plaintiff (along with the Secured Lenders) will suffer severe and irreparable damage unless immediate steps are taken to secure those assets and operations, place them in the hands of a receiver, and authorize the receiver to take all necessary action to preserve the value of those assets and operations.

56. It is in the best interests of Defendants’ creditors to place authority over the claims and defenses asserted in this litigation and the Third-Party Litigations, as well as the Remaining Collateral itself, in the hands of a qualified and objective receiver who will make prudent decisions based upon the present circumstances underlying the Michigan Exit.

57. It is also in the best interests of Defendants' creditors to (i) marshal Defendants' assets, (ii) assess the suitability of the current arrangement concerning the Monitor Facility, (iii) evaluate the value of the Remaining Collateral if marketed as a going concern, and then (iv) determine how best to liquidate those assets for the highest possible value in benefit of those creditors, including Plaintiff and the Secured Lenders.⁶

58. Importantly, regarding the Monitor Facility, the Acts specifically allow for the appointment of a receiver over regulated operations governed thereby: "The licensee shall notify the [Regulator] within 10 business days of the appointment of a court-appointed . . . receiver . . . of the licensee." Mich Admin Code, R 420.14(8); *See also* MCL 333.27959a.

59. For all the foregoing reasons, Plaintiff is entitled to the appointment of a receiver over all assets, tangible and intangible, of Defendants, including the Remaining Collateral as itemized herein.

WHEREFORE, FG requests this Court to award the following relief:

(i) Appoint a receiver with authority to take possession of all of the assets of Defendants, including the Remaining Collateral, and to preserve and protect such assets and exercise such control and management of them as the Court may direct for the purpose of preventing waste, and to enforce and perform the provisions of the Loan Documents executed by Defendants in favor of Lenders, all in accordance with applicable law, including the Acts;

(ii) Order Defendants to turn over to the receiver all assets of Defendants, tangible and intangible, including the Remaining Collateral;

⁶ Pursuant to applicable provisions of the Receivership Act, Plaintiff reserves its right to exercise its other remedies under the Loan Documents, including to foreclose on the Remaining Collateral including the Monitor Facility. *See, e.g.*, MCL 554.1024(4)(a) ("An order under subsection (1) and (2) does not operate as a stay or injunction of . . . [a]n act, action or proceeding to foreclose or otherwise enforce a security agreement by the person seeking appointment of the receiver.").

(iii) Enjoin all interested parties, including Defendants and all persons acting by, through, or in concert with them, from interfering in any manner with the receiver's control over Defendants' assets, or the receiver's performance of any other powers or duties conferred upon the receiver by this Court, all during the pendency of this action and until the assets are sold; and

(iv) Grant Plaintiff such other relief as may be fair and equitable.

COUNT II – BREACH OF APRIL 2026 LETTER AGREEMENT
(Against all Defendants)

60. Plaintiff reasserts and realleges its allegations contained in the foregoing paragraphs.

61. As set forth in the April 2026 Letter Agreement (incorporated into the Loan Documents), Defendants promised to resolve the Third-Party Litigations by May 1, 2026, and their failure to do so triggered an Event of Default under the Loan Documents.

62. The Loan Documents are integrated, valid, and binding contracts between Plaintiff and Defendants.

63. Plaintiff has fulfilled its obligations under the Loan Documents.

64. Defendants have waived all applicable defenses, claims, and/or causes of action against Plaintiff which in any way relate to the Loan Documents including, without restriction, the April 2026 Letter Agreement.

65. Defendants breached the April 2026 Letter Agreement by failing to resolve the Third-Party Litigations by the stated deadline, constituting an Event of Default under the Loan Documents at large. (*See generally*, **Ex. 5** Affidavit of Lynn Gefen).

66. Subject to the parties' commercial understanding regarding the relief sought in Count I hereof and Defendants' stipulation to, and cooperation with same, Plaintiff is authorized to exercise any and all available remedies in response to an Event of Default under the Loan Documents. (*See Note 5, supra*).

67. Plaintiff has suffered damages as a direct and proximate cause of the breach.

68. Plaintiff has been forced to retain counsel to prosecute this action and is entitled to its attorneys' fees and costs pursuant to the Loan Documents.

WHEREFORE, Plaintiff respectfully requests this Court to enter judgment in favor of Plaintiff and award the following relief:

(i) That the Court find Defendants in breach of contract and award Plaintiff damages in an amount to be proven at trial, together with interest, costs, and attorneys' fees as allowed by law or contract; and

(ii) To grant to Plaintiff such other relief as this Court may deem equitable and just.

Respectfully submitted,

DICKINSON WRIGHT, PLLC

By: /s/ Benjamin M. Sobczak

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Dated: May 4, 2026

EXHIBIT 1

JOINDER AGREEMENT

THIS JOINDER AGREEMENT, dated as of September 30, 2024 (the “Agreement Date”) (this “Agreement”), to the Loan Agreement referred to below is entered into by and among the Persons listed as “NEW ENTITIES” on the signature pages hereto (collectively, the “New Entities” and each individually, a “New Entity”), and FG Agency Lending LLC, a Delaware limited liability company as the agent (the “Agent”) to the lenders (the “Lenders”) from time to time party to that certain Loan Agreement dated as of August 1, 2024 by and among TerrAscend Corp., an Ontario corporation (“Parent”), TerrAscend USA, Inc., a Delaware corporation (“US Parent”), as guarantors, the Subsidiaries of US Parent party thereto from time to time (the “Borrowers”), as borrowers, Agent and the Lenders (as amended, restated, modified, or otherwise supplemented from time to time, the “Loan Agreement”).

WHEREAS, pursuant to Section 5.2(h) of the Loan Agreement, the New Entities are required to become Borrowers by, among other things, executing and delivering this Agreement to the Agent; and

WHEREAS, the New Entities have determined that the execution, delivery and performance of this Agreement directly benefit, and are within the corporate purposes and in the best interests of, the New Entities.

NOW THEREFORE, in consideration of the premises and other good and valuable consideration, the receipt of which is hereby acknowledged, the parties hereto hereby agree as follows:

SECTION 1. Definitions. Reference is hereby made to the Loan Agreement for a statement of the terms thereof. Capitalized terms used herein without definition shall have the meanings as ascribed in the Loan Agreement.

SECTION 2. Joinder of New Entity.

(a) Pursuant to Section 5.2(h) of the Loan Agreement, by its execution of this Agreement, the New Entity hereby (i) confirms that, as to each New Entity, the representations and warranties contained in Article VI of the Loan Agreement and in each other Loan Document being joined by the New Entities pursuant to the terms of this Section 2(a) are true and correct in all material respects (without duplication of any materiality qualifier set forth therein) on and as of the date hereof as though made on and as of the date hereof, except to the extent that any such representation or warranty expressly relates solely to an earlier date (in which case, such representation or warranty shall be true and correct on and as of such earlier date), and (ii) agrees that, by its execution of this Agreement, each New Entity (A) has become a party to the Loan Agreement and shall have all of the obligations of a Borrower and a Loan Party thereunder as if it had executed the Loan Agreement as such a Borrower and a Loan Party, (B) has become a party to the Security Agreement and the Omnibus Collateral Assignment and shall have all of the obligations of a Borrower and a Grantor thereunder as if it had executed the Security Agreement and the Omnibus Collateral Assignment as such a Borrower and a Grantor, and hereby grants to the Agent, for the benefit of the Secured Parties (as defined therein), a continuing security interest in, and Lien upon the Collateral (as defined therein) on the same terms provided therein, (C) with

respect to each New Entity that is identified as a Pledgor on the supplement to the Schedule to the Pledge Agreement, has become party to the Pledge Agreement and shall have all of the obligations of a Pledgor as if it had executed the Pledge Agreement as such a Pledgor, and hereby grants to the Agent, for the ratable benefit of the Agent and the other Secured Parties (as defined therein), a continuing security interest in and Lien upon the Pledged Collateral (as defined therein) on the same terms provided therein, (D) has become a party to the Intercompany Subordinated Note and shall have all of the obligations of an Affiliate Obligor thereunder as if it had executed such Intercompany Subordinated Note as such an Affiliate Obligor, and (E) shall comply with each other requirement set forth in Sections 5.2(h) and 7.12(a) of the Loan Agreement. Each New Entity hereby agrees that from and after the effective date of this Agreement, each reference to a “Borrower” or a “Loan Party” and each reference to the “Borrowers” or the “Loan Parties” in the Loan Agreement and each other Loan Document shall include each New Entity. Each New Entity acknowledges that it has received a copy of the Loan Agreement and each other Loan Document and that it has read and understands the terms thereof.

(b) Attached hereto are supplements to each Schedule to the Loan Agreement, Security Agreement and Pledge Agreement revised to include all information required to be provided therein with respect to, and only with respect to, the New Entities. The Schedules to the Loan Agreement, Security Agreement and Pledge Agreement shall, without further action, be amended to include the information contained in each such supplement, as applicable.

SECTION 3. Post-Closing Obligations. Each New Entity shall comply with the provisions set forth in Schedule 3 attached hereto within the time periods set forth therein (or such later date to which the Agent consents in its sole discretion).

SECTION 4. Effectiveness. This Agreement shall become effective upon its execution by the New Entities and the Agent, and receipt by the Agent of the following, in each case in form and substance reasonably satisfactory to the Lenders and the Agent:

(a) original counterparts to this Agreement, duly executed by the Borrower, the New Entity and the Agent, together with the Schedules referred to in Section 2(b) hereof;

(b) a Pledge Amendment in the form of Exhibit B to the Pledge Agreement duly executed by the parent entity of the New Entity;

(c) unless waived in writing by the Agent, (i) the certificates representing 100% of the issued and outstanding Equity Interests of each New Entity and each Subsidiary of the New Entity, and (ii) all original promissory notes of each New Entity, if any, in each case, that are required to be delivered under the Loan Documents, in each case, accompanied by instruments of assignment and transfer in such form as the Agent may reasonably request;

(d) [reserved];

(e) [reserved];

(f) an Omnibus Collateral Assignment in favor of Agent (including any consents required for the foregoing), duly executed by the New Entities, and each other necessary party thereto with respect to any Material Contract with the New Entities, together with all other

agreements, instruments and documents as the Agent may require, whether comparable to the documents required under Section 5.2(h)(iv) of the Loan Agreement or otherwise;

(g) a joinder agreement to the Intercompany Subordinated Note, pursuant to which each New Entity shall be made a party to the Intercompany Subordinated Note as an Affiliated Obligor thereunder (as such term is defined therein);

(h) [reserved];

(i) a written opinion of counsel to the Loan Parties as to such matters as the Agent may reasonably request in form and substance reasonably satisfactory to Agent; and

(j) such other agreements, instruments, approvals or other documents reasonably requested by the Agent in order to effect the intent that the New Entities shall become bound by all of the terms, covenants and agreements contained in the Loan Documents to which it is a party and that all property and assets of each New Entity shall become Collateral for the Obligations.

SECTION 5. Notices, Etc. All notices and other communications provided for hereunder shall be in writing and shall be mailed (by certified mail, postage prepaid and return receipt requested), telecopied or delivered by hand, Federal Express or other reputable overnight courier, to the applicable addresses specified in Section 11.3 of the Loan Agreement; or as such other address as shall be designated in accordance with Section 11.3 of the Loan Agreement. All such notices and other communications shall be effective in accordance with Section 11.3 of the Loan Agreement.

SECTION 6. General Provisions.

(a) [Reserved].

(b) Except as supplemented hereby, the Loan Agreement and each other Loan Document shall continue to be, and shall remain, in full force and effect. This Agreement shall not be deemed (i) to be a waiver of, or consent to, or a modification or amendment of, any other term or condition of the Loan Agreement or any other Loan Document or (ii) to prejudice any right or rights which the Agent or any other Lender may now have or may have in the future under or in connection with the Loan Agreement or the other Loan Documents or any of the instruments or agreements referred to therein, as the same may be amended, restated, supplemented or otherwise modified from time to time, including any replacement instrument or agreement therefor.

(c) Each New Entity hereby expressly (i) authorizes the Agent to file appropriate financing statements or continuation statements, and amendments thereto, (including without limitation, any such financing statements that indicate the Collateral as "all assets" or words of similar import) in such office or offices as may be necessary or, in the opinion of the Agent, desirable to perfect the Liens to be created by the Supplements and each of the other Loan Documents and (ii) ratifies such authorization to the extent that the Agent has filed any such financing or continuation statements or amendments thereto prior to the date hereof. A photocopy or other reproduction of the applicable Supplement or financing statement covering the Collateral or any part thereof shall be sufficient as a financing statement where permitted by law.

(d) [Reserved].

(e) Section headings in this Agreement are included herein for the convenience of reference only and shall not constitute a part of this Agreement for any other purpose.

(f) The terms of the Loan Agreement with respect to Sections 11.5 (Cost and Expenses), 11.12 (Governing Law), 11.13 (Submission to Jurisdiction, Waivers), 11.14 (Waiver of Defense of Illegality), and 11.15 (Execution in Counterparts) are incorporated herein by reference, mutatis mutandis, in each case substituting references to “Borrower” or “Loan Parties” with references to “New Entity” or “New Entities”, as applicable, and the parties hereto agree to such terms.

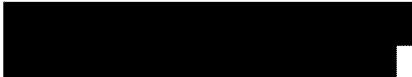
(g) This Agreement, together with the Loan Agreement and the other Loan Documents, reflects the entire understanding of the parties with respect to the transactions contemplated hereby and thereby and shall not be contradicted or qualified by any other agreement, oral or written, before the date hereof.

[Remainder of Page Intentionally Left Blank]

IN WITNESS WHEREOF, the parties hereto have caused this Agreement to be executed by their respective officers thereunto duly authorized, as of the date first above written.

NEW ENTITIES:

SPARTAN PARTNERS CORPORATION
SPARTAN PARTNERS HOLDINGS, LLC
SPARTAN PARTNERS SERVICES LLC
SPARTAN PARTNERS PROPERTIES LLC
SPARTAN PARTNERS LICENSING LLC
WDB HOLDING MI, INC.
AEY HOLDINGS, LLC
AEY CAPITAL LLC


THRIVE ENTERPRISES LLC


By: _____


Name: Keith Stauffer

Title: Chief Financial Officer

Address:

357 S. Gulph Rd., Ste 330
King of Prussia, PA 19406

IN WITNESS WHEREOF, the parties hereto have caused this Agreement to be executed by their respective officers thereunto duly authorized, as of the date first above written.

NEW ENTITIES:

[REDACTED]

[REDACTED]

[REDACTED]

IN WITNESS WHEREOF, the parties hereto have caused this Agreement to be executed by their respective officers thereunto duly authorized, as of the date first above written.

NEW ENTITIES:

SPARTAN PARTNERS CORPORATION
SPARTAN PARTNERS HOLDINGS, LLC
SPARTAN PARTNERS SERVICES LLC
SPARTAN PARTNERS PROPERTIES LLC
SPARTAN PARTNERS LICENSING LLC
WDB HOLDING MI, INC.
AEY HOLDINGS, LLC
AEY CAPITAL LLC

[REDACTED]
[REDACTED]
THRIVE ENTERPRISES LLC

[REDACTED]
[REDACTED]
[REDACTED]

By: _____
Name: Keith Stauffer
Title: Chief Financial Officer

Address:
357 S. Gulph Rd., Ste 330
King of Prussia, PA 19406

AGENT

FG AGENCY LENDING LLC

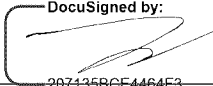
By:  _____
Name: Peter Bio
Title: Partner

EXHIBIT 2

Exhibit 2 – UCC-1 Financing Statements

Debtor	Secured Party	State of Filing	Filing Date	Filing Number
SPARTAN PARTNERS PROPERTIES LLC	FG Agency Lending LLC, as Agent	Michigan	9/30/2024	20240930000507-4
SPARTAN PARTNERS LICENSING LLC	FG Agency Lending LLC, as Agent	Michigan	9/30/2024	20240930000532-0
SPARTAN PARTNERS HOLDINGS, LLC	FG Agency Lending LLC, as Agent	Michigan	9/30/2024	20240930000514-4
SPARTAN PARTNERS CORPORATION	FG Agency Lending LLC, as Agent	Michigan	9/30/2024	20240930000492-3
AEY HOLDINGS, LLC	FG Agency Lending LLC, as Agent	Michigan	9/30/2024	20240930000536-6
AEY CAPITAL LLC	FG Agency Lending LLC, as Agent	Michigan	9/30/2024	20240930000538-4
THRIVE ENTERPRISES LLC	FG Agency Lending LLC, as Agent	Michigan	9/30/2024	20240930000518-0
SPARTAN PARTNERS SERVICES LLC	FG Agency Lending LLC, as Agent	Michigan	9/30/2024	20240930000505-6

EXHIBIT 3

Exhibit 3 – Mortgages

Mortgagor	Mortgagee	Recorded Date	Property	Instrument ID
Spartan Partners Properties LLC	FG Agency Lending LLC	October 7, 2024	Commonly known as: 3821 and 3825 Stadium Dr, Kalamazoo, MI 49008 Parcel ID Number: 39-06-30-256-001	Kalamazoo County Register of Deeds 2024-025912
Spartan Partners Properties LLC	FG Agency Lending LLC	October 10, 2024	Commonly known as: 2704 and 2706 Portage St, Kalamazoo MI 49001 Parcel ID Number: 06-26-320-001	Kalamazoo County Register of Deeds 2024-026160
Spartan Partners Properties LLC	FG Agency Lending LLC	October 9, 2024	Commonly known as: 421 S Main St, Camden, MI 49232 Parcel ID Number: 14 110 001 025	Hillsdale County Register of Deeds Liber 1880 Page 0787 Document ID 609588
Spartan Partners Properties LLC	FG Agency Lending LLC	October 9, 2024	Commonly known as: 4174 Pierson Rd, Flint, MI 48504 Parcel ID Number: 14-28-400-025	Genesee County Register of Deeds Document ID 202410090052333
Spartan Partners Properties LLC	FG Agency Lending LLC	October 10, 2024	Commonly known as: 391 Midland Road, Bay City, MI 48706 Parcel ID Number: 100-019-200-050-00	Bay County Register of Deeds Instrument No. 202411824

EXHIBIT 4

LETTER AGREEMENT RE: PENDING LITIGATION

April 17, 2026
(the “Effective Date”)

TerrAscend USA, Inc.
357 S. Gulph Rd., Ste 330
King of Prussia, PA 19406
Attention: Lynn Gefen
Title: Chief Legal Officer

Re: Pending Litigation

Ms. Gefen:

Reference is made to that certain Loan Agreement, dated as of August 1, 2024 (as amended, restated, supplemented or otherwise modified from time to time, the “Loan Agreement”), among TerrAscend Corp., an Ontario corporation (“Parent”) as Guarantor, TerrAscend, USA, Inc., a Delaware corporation, as a Borrower and Borrower Representative, the Subsidiaries of Parent party thereto as Borrowers (collectively, the “Borrowers” and, together with the Parent, the “Loan Parties”), each of the Lenders party thereto, and FG Agency Lending LLC, as administrative agent for the lenders (in such capacity, the “Agent”). This letter agreement (this “Agreement”) constitutes a “Loan Document” under the Loan Agreement. As used herein, the term “Consenting Lenders” means the Lenders party to this letter agreement (this “Agreement”).

RECITALS:

WHEREAS, pursuant to that certain Letter Agreement dated September 19, 2025, (i) the lenders party thereto consented to certain Loan Parties with operations in the State of Michigan (the “Michigan Loan Parties”) taking certain actions to cease such operations and to dispose of all or substantially all of the Michigan Loan Parties’ assets (the “Michigan Exit”) and (ii) the Borrowers agreed to, among other things, reach settlement agreements on terms satisfactory to the Agent with respect to all leases of a Michigan Loan Party pursuant to which there is a guarantee from a non-Michigan Loan Party (the “Specified Leases”);

WHEREAS, after good faith attempts to settle the Specified Leases, Borrowers have not been able to reach settlement agreements with respect to all Specified Leases and the Borrower Representative informed the Agent and the Lenders of the pending (or threatened) litigation matters with respect to certain of the Specified Leases and other litigation matters, as more particularly set forth on Schedule 1 attached hereto (the “Pending MI Litigation”);

WHEREAS, the Loan Parties have requested additional time to settle the Pending MI Litigation and, subject to the terms and conditions set forth in this Agreement, the Agent and Lenders have agreed to such request;

WHEREAS, Agent has a perfected, first-priority (subject to Permitted Liens) security interest in and to the Collateral of the Michigan Loan Parties pursuant to the Loan Documents; and

WHEREAS, the Pending MI Litigation poses a continuing risk to the remaining Collateral of the Michigan Loan Parties.

NOW, THEREFORE, in consideration of the premises and agreements, provisions and covenants herein contained, and for other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, the parties hereto agree as follows:

SECTION 1 Acknowledgments.

(a) This Agreement constitutes a Loan Document.

(b) The Lenders and the Agent have not waived, released or compromised, do not hereby waive, release or compromise, and may never waive, release or compromise any events, occurrences, acts, or omissions that may constitute or give rise to any Defaults or Events of Default that existed or may have existed, or may presently exist, or may arise in the future, nor does any Lender or the Agent waive any rights and remedies under the Loan Documents, including, without limitation, any Lender's right to direct the Agent to exercise any of such rights and remedies.

(c) This Agreement is limited in nature and, except as expressly set forth herein, the execution and delivery of this Agreement, nor any actions taken in accordance with this Agreement or the Loan Documents, including the Agent's and the Consenting Lenders' continued making of loans to the Borrowers, shall not: (i) constitute an extension, modification, or waiver of any aspect of any of the Loan Documents; (ii) extend the due date of any payment or performance of any Obligations or other obligations under the Loan Documents or payable in connection with the Loan Documents; (iii) give rise to any obligation on the part of the Lenders to extend, modify or waive any term or condition of the Loan Documents; (iv) establish any course of dealing with respect to the Loan Documents; or (v) give rise to any defenses or counterclaims to the right of the Lenders to compel payment of the Obligations or otherwise enforce their rights and remedies set forth in the Loan Documents.

(d) Except as otherwise defined in this Agreement, terms defined in the Loan Agreement are used herein as defined therein.

SECTION 2 Supplemental Terms, Conditions and Covenants. The parties hereto agree to comply with the following terms, conditions and covenants at all times (or as otherwise required by the applicable provision), in each case, notwithstanding any provision to the contrary set forth in the Loan Agreement and the other Loan Documents:

(a) Actions Related to Pending MI Litigation:

(i) Resolution of Pending MI Litigation. Not later than 5:00 p.m. (New York City time) on May 1, 2026 (or such later date and time as agreed by the Agent in its sole discretion), the Michigan Loan Parties shall have reached agreed settlements, on terms and substance satisfactory to the Agent, with respect to the Pending MI Litigation.

(ii) Litigation Tracker. Commencing on April 29, 2026, and continuing weekly on each Wednesday occurring thereafter (or if such day is not a Business Day, the next succeeding Business Day), the Loan Parties shall deliver to Agent, weekly updates summarizing the progress with respect to settlement of the Pending MI Litigation, and shall provide Agent with all other information with respect to the Pending MI Litigation as may be requested by Agent. For the

avoidance of doubt, this obligation shall be in addition to Section 7.2(m) of the Loan Agreement and all other obligations of the Loan Parties under the Loan Agreement.

Any breach of the covenants and agreements set forth in this Section 2(a) shall be an immediate Event of Default under Section 9.1 of the Loan Agreement, and shall not be subject to any cure period.

(b) Stipulation to Receivership and Venue:

(i) Upon the occurrence of an Event of Default under Section 2 hereof, the Loan Parties shall stipulate to and fully cooperate in the Agent's remedies predicated upon that associated Event of Default, including but not limited to, insolvency proceedings and the appointment of a receiver or keeper to take possession of any Collateral and to enforce any of its remedies with respect to such appointment without prior notice or hearing as to such appointment (the "Receivership").

(ii) The Receivership shall be filed in Oakland County Circuit Court and the Michigan Loan Parties shall stipulate to the entry of the underlying receivership order appointing a qualified receiver of Agent's choosing to take possession of any Collateral owned or otherwise held by the Michigan Loan Parties, and to enforce the Lenders' remedies with respect to such appointment without further notice or hearing as to such appointment.

SECTION 3 Conditions Precedent. This Agreement is subject to the satisfaction of all of the following conditions precedent:

(a) the Loan Parties, the Consenting Lenders (which shall constitute at least all Required Lenders) and the Agent shall have executed and delivered this Agreement.

(b) the Loan Parties shall have paid all costs and expenses of the Agent invoiced prior to the date hereof.

SECTION 4 Representations and Warranties. Each Loan Party represents and warrants to the Agent and the Consenting Lenders on the date hereof that:

(a) the execution, delivery and performance of this Agreement is within its corporate or other organizational powers and has been duly authorized by all necessary corporate or other organizational action of it;

(b) this Agreement has been duly executed and delivered by it and is a legal, valid and binding obligation of it, enforceable in accordance with its terms, subject to applicable bankruptcy, insolvency or similar laws affecting creditors' rights generally and to general principles of equity and principles of good faith and dealing; and

(c) representations and warranties of the Loan Parties contained herein or in the other Loan Documents, after giving effect to this Agreement, are true and correct in all material respects (or in all respects if any such representation or warranty is already qualified by materiality, Material Adverse Effect or similar language) on and as of the Effective Date, except to the extent that such representations and warranties expressly relate to an earlier date, in which event such representations and warranties are true and correct in all material respects (or in all respects if any such representation or warranty is already qualified by materiality, Material Adverse Effect or similar language) as of such earlier date.

SECTION 5 Reaffirmation. Each Loan Party consents to the amendment of the Loan Agreement effected hereby and confirms and agrees that, notwithstanding the effectiveness of this Agreement, each Loan Document to which such Loan Party is a party is, and the obligations of such Loan Party contained in the Loan Agreement, this Agreement or in any other Loan Document to which it is a party are, and shall continue to be, in full force and effect and are hereby ratified and confirmed in all respects, in each case, as amended by this Agreement. For greater certainty and without limiting the foregoing, each Loan Party hereby confirms the existing security interests in the Collateral granted in favor of the Agent for the benefit of, among others, the Lenders pursuant to the Loan Documents described therein, which security interests shall continue in full force and effect after giving effect to this Agreement to secure the Obligations as and to the extent provided in the Loan Documents.

SECTION 6 Release.

(a) The Loan Parties acknowledge that the Agent and the Consenting Lenders would not enter into this Agreement without the Loan Parties' assurance hereunder. Except for the obligations arising under this Agreement, the Loan Parties hereby absolutely discharge and release the Agent, the Consenting Lenders and each Related Party of any of the foregoing Persons (collectively, the "Released Parties") from any known or unknown claims arising on or before the date hereof, which any Loan Party now has against Agent or any Consenting Lender of any nature, including any claims that such Loan Party or any of its Related Parties may in the future discover they would have now if they had known facts not now known to them, whether founded in contract, in tort or pursuant to any other theory of liability, including but not limited to any claims arising out of or related to the Loan Documents or the transactions contemplated thereby, including the administration and enforcement thereof (collectively, all of the foregoing, the "Claims"). Each Loan Party represents and warrants that they have no knowledge of any Claim by it against any Released Party or of any facts or acts or omissions of the Released Parties which on the date hereof would be the basis of a Claim by a Loan Party against the Released Parties which is not released hereby.

(b) Each Loan Party represents and warrants that neither the Agent nor any Consenting Lender has at any time directed or participated in any aspect of the management of any Loan Party or the conduct of any Loan Party's business. Each Loan Party has made all business decisions independently of the Consenting Lenders and the Agent.

(c) Each Loan Party hereby absolutely, unconditionally and irrevocably covenants and agrees with and in favor of each of the Released Parties that it will not sue (at law, in equity, in any regulatory proceeding or otherwise) any of the Released Parties on the basis of any Claim released, remised and discharged by Borrower pursuant to clause (a) above. If any Loan Party violates the foregoing covenant, Loan Parties, for themselves and their Related Parties, agree to pay, in addition to such other damages as any of the Released Parties may sustain as a result of such violation, all attorneys' fees and costs incurred by any of the Released Parties as a result of such violation.

(d) Each Loan Party hereby irrevocably waives the benefits of any and all statutes and rules of law to the extent the same provide in substance that a general release does not extend to claims which the creditor or other party providing the release does not know or suspect to exist in its favor at the time of executing the release.

(e) The provisions, waivers and releases set forth in this section are binding upon Loan Parties, and Related Parties, and each and every party claiming rights by or through a Loan Party. The provisions, waivers and releases of this section shall inure to the benefit of Released Parties.

(f) Each Loan Party warrants and represents that such Loan Party is the sole and lawful owner of all right, title and interest in and to all of the claims released hereby and such Loan Party has not

heretofore voluntarily, by operation of law or otherwise, assigned or transferred or purported to assign or transfer to any person any such claim or any portion thereof. Loan Parties shall indemnify and hold harmless Released Parties from and against any claim, demand, damage, debt, liability (including payment of attorneys' fees and costs actually incurred whether or not litigation is commenced) based on or arising out of any assignment or transfer other than due to the gross negligence or willful misconduct of Released Parties.

(g) The provisions of this section shall survive payment in full of the Obligations, full performance of all the terms of this Agreement and the Loan Documents, and/or Agent's actions to exercise any remedy available under the Loan Documents or otherwise.

SECTION 7 Indemnification. In addition to, but without duplication of, the Loan Parties' Obligations under Section 11.6 of the Loan Agreement, as of the Effective Date, the Borrowers shall indemnify the Agent, each Lender and each Related Party of any of the foregoing Persons (each such Person being called an "Indemnatee") against, and hold each Indemnatee harmless from, any and all liabilities, obligations, losses, damages, penalties, claims, demands, actions, judgments, suits, costs (including settlement costs), disbursements and reasonable and documented out-of-pocket fees and expenses (including the reasonable and documented out-of-pocket fees, charges and disbursements of any counsel for any Indemnatee (limited to the fees, costs, client charges and expenses of (i) one firm of lead counsel for the Agent and the Lenders, taken as a whole; and (ii) one local counsel in each relevant jurisdiction (and, in the case of an actual or potential conflict of interest, one additional local counsel in each relevant jurisdiction) for the Agent and the Lenders, taken as a whole)), joint or several, of any kind or nature whatsoever which may at any time be imposed on, incurred by or asserted or awarded against any Indemnatee in any way relating to or arising out of or in connection with or by reason of any actual or prospective claim, litigation, investigation or proceeding in any way relating to, arising out of, in connection with or by reason of any of the following, whether based on contract, tort or any other theory (including any investigation of, preparation for, or defense of any pending or threatened claim, litigation or proceeding): the execution, delivery, enforcement, performance or administration of this Agreement or any action in connection with the Michigan Loan Parties, any document executed in connection with the Michigan Loan Parties, or any other document delivered in connection with the transactions contemplated by this Agreement or any amendments, modifications or waivers of the provisions hereof or thereof (whether or not the transactions contemplated hereby or thereby shall be consummated) or the consummation of the transactions contemplated thereby; provided that such indemnity shall not, as to any Indemnatee, be available to the extent that such liabilities, obligations, losses, damages, penalties, claims, demands, actions, judgments, suits, costs, fees and expenses (A) are determined by a court of competent jurisdiction by final and non-appealable judgment to have resulted from the gross negligence or willful misconduct of such Indemnatee, (B) result from a claim brought by the Borrowers or any other Loan Party against an Indemnatee for a material breach of such Indemnatee's obligations hereunder, if the Borrowers or such Loan Party has obtained a final and non-appealable judgment in its favor on such claim as determined by a court of competent jurisdiction or (C) any dispute solely among Indemnitees.

SECTION 8 Advice from Independent Counsel; Judicial Interpretation. Each of the parties hereto represents and warrants that it (a) is represented by competent legal counsel of its choice, (b) has consulted with counsel regarding this Agreement, (c) has read, fully understood and is fully aware of each of the terms and conditions contained herein, (d) has voluntarily and without coercion, duress or undue influence of any kind entered into this Agreement and (e) intends to be legally bound by this Agreement. There shall be no presumption that the terms hereof shall be more strictly construed against any party hereto by reason of any rule of construction that a document is to be construed more strictly against the party that

prepared the same, it being expressly acknowledged and agreed that all parties hereto have participated in the preparation of this Agreement.

SECTION 9 Costs and Expenses. Section 11.5 of the Loan Agreement is incorporated herein by reference *mutatis mutandis*. For the avoidance of doubt (but without duplication of any obligations set forth in Sections 11.5 of the Loan Agreement), the Loan Parties agree to pay directly or reimburse (at the direction of the Agent) the Agent and the Consenting Lenders, promptly on demand for all reasonable and documented fees, costs, charges and expenses of Feuerstein Kulick LLP, as counsel to the Agent, and Dickinson Wright PLLC, as special local counsel to the Agent, in each case incurred in connection with this Agreement and the other agreements and documents executed and/or delivered in connection herewith and therewith or the transactions contemplated hereby or thereby. For the avoidance of doubt, any failure to pay or reimburse the Agent for such fees, costs, charges and expenses shall be an Event of Default under Section 9.1(c) of the Loan Agreement. The provisions of this Section 9 shall survive the termination of this Agreement.

SECTION 10 Amendments; Submission to Jurisdiction; Governing Law; and Counterparts. Sections 11.2 (*Amendments, Etc*), 11.11 (*Submission to Jurisdiction; Waivers*), 11.12 (*Severability*), 11.13 (*Governing Law*), and 11.15 (*Execution in Counterparts; Electronic Signatures*) of the Loan Agreement are incorporated herein by reference *mutatis mutandis*.

SECTION 11 Conflict with Other Loan Documents. To the extent of any conflict or inconsistency between the terms of this Agreement and any other Loan Document (including the Loan Agreement), the terms of this Agreement shall govern.

[SIGNATURE PAGES TO FOLLOW]

IN WITNESS WHEREOF, each of the undersigned has caused this letter agreement to be duly executed by their respective authorized officers as of the day and year first above written.

Very truly yours,

FG AGENCY LENDING LLC, as Agent

By:  _____

Name: Peter Bio

Title: Partner

CONSENTING LENDERS:

[Redacted]

[Redacted]

By [Redacted]
Name: [Redacted]
Title: [Redacted]

[Redacted]

By [Redacted]
Name: [Redacted]
Title: [Redacted]

CONSENTING LENDER:

[REDACTED]

[REDACTED]

By: _____

Name: _____

Title: _____

CONSENTING LENDER:

[REDACTED]

By: [REDACTED]
[REDACTED]

By: [REDACTED]
[REDACTED]

By: [REDACTED]
[REDACTED]

[REDACTED]
By: [REDACTED]

Name: [REDACTED]

Title: [REDACTED]

CONSENTING LENDER:

[REDACTED]

By: [REDACTED]
[REDACTED]

[REDACTED]

By: _____

Name: [REDACTED]

Title: [REDACTED] r

CONSENTING LENDER:

[REDACTED]

By:

Name:

Title:

[REDACTED]

CONSENTING LENDER:

[REDACTED]

Name: [REDACTED]
Title: [REDACTED]

CONSENTING LENDER:

[REDACTED]

[REDACTED]
By: _____
Name: _____
[REDACTED]

CONSENTING LENDER:

[REDACTED]

By: _____

Name: _____

[REDACTED]

CONSENTING LENDER:

[REDACTED]

[REDACTED]

By: [REDACTED]

[REDACTED]

Title: [REDACTED]

CONSENTING LENDER:

[REDACTED]

By: [REDACTED]

Name: [REDACTED]

[REDACTED]

CONSENTING LENDER:

[REDACTED]
[REDACTED]
By: [REDACTED]
Name: [REDACTED]
Title: [REDACTED]

CONSENTING LENDER:

[REDACTED]

By: [REDACTED]
Name: [REDACTED]
Title: [REDACTED]

GUARANTOR:

TERRASCEND CORP.

By: 
9252AFD9A6EE492...

Name: Ziad Ghanem

Title: Chief Executive Officer

BORROWERS:

SPARTAN PARTNERS CORPORATION
SPARTAN PARTNERS HOLDINGS, LLC
SPARTAN PARTNERS SERVICES LLC
SPARTAN PARTNERS PROPERTIES LLC
SPARTAN PARTNERS LICENSING LLC
WDB HOLDING MI, INC.
AEY HOLDINGS, LLC
AEY CAPITAL LLC

[REDACTED]

THRIVE ENTERPRISES LLC

[REDACTED]

[Redacted]

TERRASCEND USA, INC.

[Redacted]

Signed by:
Ziad Ghanem
By: 92524ED9A8EE492
Name: Ziad Ghanem
Title: Chief Executive Officer

[Redacted]

[Redacted]

SCHEDULE 1

Pending MI Litigation

1. MAV 1, LLC v AEY Capital, LLC, TerrAscend Corp., "Gage Cannabis", Case No: 2025-219096-CB
2. Blue Fox Brands, Inc. v TerrAscend Corp., Thrive Enterprises LLC, AEY Holdings, LLC, KISA Enterprises MI Inc., Case No: 2025-005203-CB
3. Shiv Leela, LLC v AEY Capital, LLC, Case No: 2022-195703-CB
4. Driven Grow, LLC v. Thrive Enterprises LLC, Case No:2026-000141-CK
5. Threatened claim: Battle Creek Downtown Central, LLC v Thrive Enterprises, LLC, Terra Capital, LLC
6. Threatened claim: EBK Zoc, LLC v Spartan Partners Properties, LLC, Thrive Enterprises, LLC, TerrAscend Growth Corp.

EXHIBIT 5

STATE OF MICHIGAN

IN THE CIRCUIT COURT FOR THE COUNTY OF OAKLAND

FG AGENCY LENDING LLC, a
Delaware limited liability company,

Plaintiff,

Case No.

Hon.

v

WDB HOLDING MI, INC., a Delaware corporation;
SPARTAN PARTNERS CORPORATION, a Michigan
corporation; SPARTAN PARTNERS HOLDINGS,
LLC, a Michigan limited liability company; SPARTAN
PARTNERS SERVICES LLC, a Michigan limited
liability company; SPARTAN PARTNERS
PROPERTIES LLC, a Michigan limited liability
company; SPARTAN PARTNERS LICENSING LLC, a
Michigan limited liability company; AEY HOLDINGS,
LLC, a Michigan limited liability company; AEY
CAPITAL LLC, a Michigan limited liability company;
THRIVE ENTERPRISES LLC, a Michigan limited
liability company,

Defendants.

DICKINSON WRIGHT PLLC

Benjamin Sobczak (P73567)
Kaitlyn Elias (P82957)
Elle Kersten (P87856)
2600 W. Big Beaver Rd., Suite 300
Troy, MI 48084
(248) 631-2014
BSobczak@dickinson-wright.com
KElias@dickinson-wright.com
Attorneys for Plaintiff

AFFIDAVIT OF LYNN GEFEN

1. My name is Lynn Gefen. I am over the age of eighteen (18), of sound mind, and
legally competent to make this Affidavit. I am the Secretary of each of the Defendants. I make this

Affidavit based upon my own personal knowledge and records and information available to me.

The statements made herein are true and correct to the best of my knowledge.

2. Defined terms herein shall have the same meaning as in the Complaint this Affidavit is incorporated into.

3. On or about April 21, 2026 Defendants and FG entered into the April 2026 Letter Agreement.

4. The April 2026 Letter Agreement provided that Defendants shall have settled all Third-Party Litigation listed therein by May 1, 2026.

5. Defendants provided bona fide offers of settlement to resolve all the Third-Party Litigation which included no admission of responsibility as to the claims of each litigant.

6. Defendants were able to successfully resolve some of its respective Third-Party Litigation.

7. The following litigation remains pending and was not resolved by May 1, 2026:

- (i) MAV 1, LLC v AEY Capital, LLC, TerrAscend Corp., "Gage Cannabis", (Case No: 2025-219096-CB);
- (ii) Blue Fox Brands, Inc. v TerrAscend Corp., Thrive Enterprises LLC, AEY Holdings, LLC, KISA Enterprises MI Inc., Case No: 2025-005203-CB; and
- (iii) Driven Grow, LLC v. Thrive Enterprises, LLC (Case No. 2026-000141-CK).

8. The remaining Third-Party Litigation threatens FG's superior interests in the Remaining Collateral.

9. Based on the inability of Defendants to resolve all the Third-Party Litigation there is an Event of Default pursuant to the April 2026 Letter Agreement.

The foregoing statement is made under penalty of perjury under the laws of the State of Michigan and is true and correct.

Signed on this 4th day of May, 2026.


Lynn Gelen

AFFIANT FURTHER SAYETH NOT.

Subscribed and sworn to before me on
this 4th day of May, 2026.


Notary Public

